MARTIN MUSHORIWA
versus
TAFADZWA BERNARD MAGODORA

HIGH COURT OF ZIMBABAWE
MAWADZE DJP AND WAMAMBO J
HARARE; 30 July 2026

Civil Appeal

P N Mazhande, for the appellant
K Chimiti, for the respondent

WAMAMBO J:

Introduction

This is an appeal against the whole judgment of the Magistrates' Court at Harare, granting the respondent's application for a compelling order with costs. For convenience, I refer to the parties as cited in the appeal. The appeal turns principally on whether the court *a quo* misdirected itself in granting restorative mandatory relief after a default judgment, under which the appellant had obtained possession, had already been rescinded. On appeal, this Court does not lightly interfere with a discretionary order unless the lower court acted on a wrong principle, misdirected itself, or reached a conclusion not reasonably open to it. See *Barros & Anor* v *Chimphonda* 1999 (1) ZLR 58 (S).

The short background is this. In the earlier matter, HREC-CG2188/22, the appellant sued for eviction. The respondent says he entered appearance to defend and later requested further particulars. Despite that, default judgment was obtained, a warrant of ejectment followed, and the appellant obtained possession. The respondent then successfully applied for rescission of that default judgment. After rescission, however, possession was not restored to him. He thereafter approached the Magistrates' court under HREC-CG3115/25 for a compelling order directing surrender of possession. The Magistrate granted that relief and

ordered surrender within seven days, failing which the Messenger of court was authorised to evict.

The parties' heads of argument in the court *a quo* framed the dispute in terms of a mandatory interdict or *mandamus*. The appellant argued that rescission alone did not automatically entitle the respondent to repossession and relied particularly on section 39(3) of the Magistrates Court Act [*Chapter 7:10*] and O 30 r 2(1)(c)–(d) of the Magistrates Court (Civil) Rules, 2019. The respondent, on the other hand, relied on the proposition that the appellant could not continue to benefit from an order that had been set aside, and cited *Setlogelo* v *Setlogelo* 1914 AD 221, *Tribac (Pvt) Ltd* v *Tobacco Marketing Board* 1996 (2) ZLR 52 (S), *Commercial Farmers' Union* v *Mhuriro & Ors* 2000 (2) ZLR 405 (S), *Chiwenga* v *Chiwenga* SC 2/14, and *CRG Quarries (Pvt) Ltd* v *Provincial Mining Director, Mashonaland East Province N.O. & Ors* HH 700/20.

For accuracy, the grounds of appeal are hereby restated verbatim.

> "1. The court *a quo* grossly erred in granting an application for a compelling order when the application did not meet the legal requirements for a compelling order as there was no contractual relationship between appellant and respondent.
> 2. The court *a quo* grossly erred in granting an eviction order through the application procedure yet appellant has rights over the stand and applicant had not established his right to vindicate the property from the Appellant.
> 3. The court *a quo* erred in dismissing the appellant's point *in limine* without giving reasons for its dismissal.
> 4. The court *a quo* erred in entertaining the application for a compelling order yet the same matter was pending before the same court and was *lis pendens."*

The first ground cannot succeed. The court *a quo* was not asked to enforce a contract between the parties. It was asked to grant restorative mandatory relief after the legal foundation on which the appellant had obtained possession had been removed by rescission. In Zimbabwe, a *mandamus* or mandatory interdict is available where the applicant establishes the requisites of a prohibitory interdict, namely a clear or definite right, an injury actually committed or reasonably apprehended, and the absence of similar protection by another ordinary remedy. That is the ratio of *Setlogelo* v *Setlogelo* 1914 AD 221 at 227 and *Tribac (Pvt) Ltd* v *Tobacco Marketing Board* 1996 (2) ZLR 52 (S) at 56B–D. CRG Quarries HH 700/20 restates the same essentials and adds that the remedy is discretionary and useful only

where it serves a practical purpose. The absence of contractual privity was therefore beside the point. The relevant question was whether, after rescission, the respondent had shown a sufficiently clear legal entitlement to restoration, and whether the appellant had any legal basis to continue retaining possession solely by reference to the rescinded judgment. On the undisputed procedural facts, the magistrate was entitled to answer that question in the respondent's favour.

The respondent's position was strengthened by the settled principle that a court order must be obeyed until set aside. In *Chiwenga* v *Chiwenga* SC 2/14, the Supreme Court stated that "an extant order of this Court must be obeyed or given effect to unless it has been varied or set aside by this Court and not even by consent can parties vary or depart therefrom." That proposition was stated with reference to *CFU* v *Mhuriro & Ors* 2000 (2) ZLR 405 (S). I accept that the present matter concerns the converse situation: the order under which the appellant had obtained possession had already been set aside. But the inference is straightforward. Once the source order has been rescinded, a litigant cannot continue to insist on the fruits of that order as though it still existed. Section 39(3) of the Magistrates Court Act governs whether execution is to proceed or be suspended pending determination of a rescission application; it does not convert a rescinded judgment into a continuing source of lawful possession after rescission has occurred.

The second ground also fails. The appellant's complaint that the magistrate granted an "eviction order through the application procedure" mistakes substance for label. The order *a quo* did not finally determine ownership or the ultimate right to possession in HREC-CG2188/22. Those matters remain for determination in the main case. What the magistrate did was to restore the position after a default judgment had been rescinded and the appellant had nonetheless remained in possession by reason of an order that no longer existed. The appellant's asserted rights over the stand can still be ventilated in the main matter; the order under appeal did not finally extinguish them. In that sense, no final *rei vindicatio* was required. If this had been a pure vindicatory eviction, proof of ownership and unlawful possession would indeed have been central. But the present application was narrower and restorative in character. That distinction is consistent with Zimbabwean interdict jurisprudence and with the record before the court *a quo*.

Nor was motion procedure fatally inappropriate. The critical facts were either common cause or established on the papers: the earlier eviction action, the default judgment, execution, the subsequent rescission, and the appellant's continued retention of possession. The live dispute about ultimate title or allocation of the stand was for the main matter, not a reason to deny narrow restorative relief in the interim. The court *a quo* was therefore not compelled to dismiss the application simply because the underlying property dispute remained unresolved.

The third ground, directed at the dismissal of the point *in limine*, is equally unpersuasive. The magistrate's reasons were undeniably terse. At the same time, they were not entirely absent. The ruling expressly states, in substance, that nothing had been substantiated on the preliminary objection and that it was dismissed for lack of merit. Read together with the remainder of the ruling and the parties' heads of argument, the basis of that conclusion is clear enough: the Magistrate rejected the appellant's contention that a compelling order was legally unavailable and accepted instead that rescission had removed the legal basis for the appellant's continued possession. Appellate intervention is not justified merely because the reasons were brief where the path of reasoning remains ascertainable from the record and the result is correct in law.

Finally, the plea of *lis pendens* was properly dismissed. The earlier action and the later application involved the same parties and the same property, but they were not the same proceeding for the same immediate relief on the same immediate cause of action. HREC-CG2188/22 was the appellant's substantive eviction action. HREC-CG3115/25 was a later application for restorative relief following rescission and continued retention of possession under a rescinded judgment. The Supreme Court in *Mhungu* v *Mtindi* 1986 (2) ZLR 171 (S) recognised that *lis pendens* is not a rigid mechanical defence and that the court retains a discretion informed by equity and convenience. In the circumstances of this case, it would have been artificial to hold that the respondent was barred from seeking interim restorative relief merely because the underlying action had not yet gone to finality, especially where the complaint was that the appellant was continuing to enjoy the benefits of a judgment already set aside.

In the result, none of the four grounds discloses a material misdirection by the court *a quo*. The Magistrate applied relief that was competent in principle, addressed a real and continuing prejudice, and left the merits of the main property dispute for later determination in the pending action. The appeal therefore falls to be dismissed.

Accordingly, it is ordered that:

1. The appeal be and is hereby dismissed.
2. The appellant shall pay the respondent's costs of appeal on the ordinary scale.

WAMAMBO J……..

MAWADZE DJP…….I agree

Mazhande Mazhande, appellant's legal practitioners
Machaya & Associates, respondent's legal practitioners